BY ORDER OF THE COMMANDER
TINKER AIR FORCE BASE

TINKER AIR FORCE BASE
INSTRUCTION 51-901

10 AUGUST 2018
Certified Current, 2 September 2022
Law

DISPOSITION OF JUVENILE MISCONDUCT CASES

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OPR: 72 ABW/JAA

Certified by: 72 ABW/JA
(Amer Mahumud, Lt Col)

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Pages: 17

This instruction implements Air Force Policy Directive 51-9, *Civil Law for Individuals*, and provides the framework for the disposition of juvenile misconduct cases and the treatment of juvenile offenders. The purpose of this instruction is to establish responsibilities and procedures for the administrative disposition of misconduct committed by juveniles at Tinker Air Force Base (AFB) and to establish the Tinker AFB Juvenile Assistance Council (JAC). The JAC will hear all cases in which a juvenile is alleged to have engaged in misconduct or cases referred to it by the 72d Air Base Wing (72 ABW). The JAC will determine the appropriate disposition of the case by weighing the best interests of the juvenile and Tinker AFB. The action taken will be designed to attain the primary goal of maintaining good order and discipline at Tinker AFB and, if possible, to rehabilitate the juvenile offender. This instruction applies to juveniles who engage in misconduct at Tinker AFB and are dependents of personnel stationed at Tinker AFB (to include all personnel administratively assigned to 72 ABW) or dependents of active duty or retired military personnel using Tinker AFB facilities. Applies to Air Force Reserve and Air National Guard units except where noted otherwise. This instruction also applies to the sponsors of juveniles who engage in misconduct at Tinker AFB. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using AF Form 847, *Recommendation for Change of Publication.* Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with AFMAN33-363, *Management of Records,* and disposed of in accordance with the Air Force Records Disposition Schedule (RDS) located at **https://www.my.af.mil/afrims/afrims/afrims/rims.cfm**. See **Attachment 1** for a glossary of references and supporting information.

This publication is affected by the Privacy Act of 1974. Each memorandum required by this publication contains a Privacy Act statement, either incorporated in the body of the document or in a separate statement accompanying each document.

SUMMARY OF CHANGES

This publication has been moderately reviewed since 2011. Changes include administrative modifications and updating office symbols. Paragraph 4.4.2 was revised to include the following statement, "If the 72 ABW/CC accepts the recommendations of the JAC Chair, the 72 ABW/CC will sign the Decision Memorandum (see **Attachment 5**)." Paragraph **5.3.6** was changed to explain the process of recording the list of punishments that are handed down by the JAC Coordinator during the JAC meeting. **Attachment 2**, identification (ID) Card Confiscation for Shoplifting, Notification Memorandum, was added to this publication, along with **Attachment 7**, List of Punishment/s for Juvenile (Sample). Please review this publication in its entirety.

1. Authority.

1.1. Title 18 United States Code (USC) Chapter 403: *Juvenile Delinquency*, set forth a strong preference that juvenile misconduct which amounts to a petty offense or misdemeanor be dealt with outside of the federal court system. As such, administrative procedures are authorized.

1.2. The installation commander is charged with the responsibility for maintaining law and order on the base (AFI 31-101, *Integrated Defense*). To achieve this goal, the installation commander may limit or revoke base privileges, as outlined in relevant guidance (e.g., DoDI 5200.08, *Security of DoD Installations…*; DoDI 1330.17, *Armed Services Commissary Operations*; AFI 34-211, *Army and Air Force Exchange Service Operations*; AFMAN31-116, *Air Force Motor Vehicle Traffic Supervision*; etc.). The privileges include the following: base exchange privileges, commissary privileges, housing privileges, theater privileges, shoppette privileges, base driving privileges and the privilege of entering any part (or all) of the base. This instruction complies with the foregoing law and instruction by ensuring that an offense involving a juvenile is identified, adjudicated and disposed of in a manner that maintains good order and discipline while stressing deterrence and rehabilitation of the juvenile.

2. Purpose of the JAC:

2.1. The JAC is designed to:

2.1.1. Maintain good order and discipline at Tinker Air Force Base.

2.1.2. Educate juveniles and their sponsors on the consequences of misconduct and crime (i.e., the impact crime has on the juvenile offender, the offender's family, the victims and the community).

2.1.3. Rehabilitate juveniles through counseling, education, community service, restitution and other means of corrective action as recommended by the JAC and ordered by the Commander of the 72d Air Base Wing (72 ABW/CC). Therefore, all actions should be designed to prevent further misconduct and instill respect for the law in the juveniles participating in the JAC.

2.1.4. Protect the best interests of both the juvenile and the Tinker AFB community.

2.2. **Participation in the JAC Program** . Participation by the juvenile in the JAC Program is voluntary. However, certain administrative sanctions may be taken against a juvenile offender even if the juvenile refuses to submit to the jurisdiction of the JAC. (For example, the installation commander retains the authority to bar the juvenile from base and to terminate on-base housing privileges of the juvenile's family.) Conversely, certain rehabilitative measures, such as referral to counseling, performance of community service or participation in a work program by the juvenile offender, may only be undertaken if the juvenile agrees to submit to the JAC's jurisdiction. Rescission of administrative sanctions (e.g., reinstatement of privileges) may be contingent upon the juvenile's consent to the jurisdiction of the JAC and satisfactory completion by the juvenile offender and/or his or her sponsor of such rehabilitative measures ordered by the JAC. If the juvenile refuses to submit to the jurisdiction of the JAC, the JAC may refer the case to the Special Assistant United States Attorney (SAUSA) for prosecution at United States (U.S.) Magistrate Court as a petty offense under 18 U.S.C., Section 5032, as may be permitted by law.

3. Composition of the JAC.

3.1. Composition of the JAC:

3.1.1. The Deputy Commander, 72d Mission Support Group (72 MSG/CD), shall serve as the JAC Chair.

3.1.2. The council will consist of representatives, as approved by the JAC Chair, from the following member organizations:

3.1.2.1. Chaplain (72 ABW/HC).

3.1.2.2. 72d Security Forces Squadron Commander (72 SFS/CC).

3.1.2.3. 72d Air Base Wing Staff Judge Advocate (72 ABW SJA) or an Assistant Staff Judge Advocate (ASJA), and Recorder as appointed by the SJA.

3.1.2.4. Family Advocacy (72 MDOS/SGOW).

3.1.2.5. Special invited guests, such as a representative from the Airmen and Family Readiness Center (72 FSS/FSFR) or the Military Family Housing Office (72 ABW/CEAC), as necessary. Guests may include the sponsor's Commander and First Sergeant.

3.2. JAC Members. Members will endeavor to provide continuity of attendees by avoiding turnover of JAC member representatives when possible.

4. Responsibilities.

4.1. 72d Security Forces (72 SFS) will:

4.1.1. Prepare an AF Form 3545, *Incident Report,* or a Report of Investigation (ROI).

4.1.2. As appropriate, issue the juvenile a memorandum signed by 72 MSG/CD, that immediately limits the juvenile's on-base privileges (see **Attachment 3**).

4.1.3. Reflect on the notification date, time and location of the meeting of the JAC. The meeting date on the memorandum shall be the next available meeting date from the date of the incident.

4.1.4. Issue an Order to Appear before JAC memorandum (see **Attachment 4**), signed by the JAC Chair to the juvenile, and serve a copy on the juvenile's parent(s) or sponsor informing them of the charge. An informational copy will be sent to the sponsor's unit commander and First Sergeant (CCF).

4.1.5. Send the AF Form 3545 and a copy of the limited privileges letter to the Staff Judge Advocate.

4.2. 72 ABW SJA (or designee) will:

4.2.1. Notify JAC members of the date, time and location of upcoming JAC meetings.

4.2.2. Provide a summary of the case/s to the JAC members for their review before the council meets with the juvenile and sponsor. 72 ABW SJA may also forward to the JAC Chair any additional evidence of the misconduct (e.g., Base Exchange surveillance videotapes) as well as summaries of the incidents.

4.2.3. Record the minutes of JAC meetings and provide copies to the JAC Chair for review. This task may be accomplished by a paralegal or other member of the legal office.

4.2.4. At the direction of the JAC Chair, 72 ABW SJA will prepare a decision memorandum (see **Attachment 5**) for the 72 ABW/CC's signature, addressed to the juvenile offender, announcing the final disposition of the case. The memorandum shall also include information regarding community service, counseling referrals, etc., if applicable. Once signed and returned by the 72 ABW/CC, 72 ABW SJA (or designee) will ensure the signed memorandum is mailed to the juvenile offender and his or her sponsor and a copy forwarded to Report & Analysis (72 SFS/S5R) and Administrative Support (72 FSS/FSMPS).

4.2.5. If any of the juvenile offender's privileges are to be revoked, 72 ABW SJA will prepare a revocation memorandum (see **Attachment 6**) for 72 ABW/CC's signature, addressed to the sponsor, directing the sponsor to apply for a replacement identification card for the juvenile offender with limited privileges. Once signed and returned by the Commander (72 ABW/CC), 72 ABW SJA (or designee) will ensure the signed memorandum is mailed to the juvenile offender and his or her sponsor and a copy forwarded to 72 FSS/FSMPS.

4.3. The JAC will:

4.3.1. Meet as directed by the JAC Chair to review cases of juvenile misconduct. The JAC should meet at least once a quarter. If necessary due to the number of cases, the JAC Chair may require more than one meeting per quarter. The JAC Chair may cancel a meeting at his or her discretion and direct that cases be considered at the next meeting.

4.3.2. Recommend an appropriate command response to the misconduct, including but not limited to the following or any combination thereof:

4.3.2.1. No action.

4.3.2.2. Oral counseling, admonition or reprimand of the juvenile offender and/or his or her sponsor.

4.3.2.3. Written counseling, admonition or reprimand of the juvenile offender and/or his or her sponsor signed by the 72 ABW/CC.

4.3.2.4. Referral of the juvenile offender and/or sponsor to Airmen & Family Readiness Center, Family Advocacy, Mental Health or other agencies for counseling.

4.3.2.5. Placing certain base areas and or facilities off-limits to the juvenile offender.

4.3.2.6. Imposing a curfew other than the normal base curfew. This is the equivalent of "house detention."

4.3.2.7. Restricting access to base functions.

4.3.2.8. Suspension or revocation of any or all base privileges.

4.3.2.9. Barment.

4.3.2.10. Termination of on-base family housing.

4.3.2.11. Requiring the juvenile to complete a specified number of hours of community service on or off Tinker Air Force Base.

4.3.2.12. Identifying conditions that may contribute to juvenile problems and recommending corrective action to other base agencies.

4.3.2.13. Referring the case to the appropriate juvenile authorities in the civilian community.

4.3.2.14. Referring the case to the Special Assistant U.S. Attorney for prosecution as a petty offense under 18 U.S.C., Section 5032, *Delinquency proceedings in district courts; transfer for criminal prosecution*, in U.S. Magistrate Court, as may be permitted by law.

4.3.2.15. Any other action deemed appropriate for the preservation of good order and discipline at Tinker AFB and in the best interest of the juvenile offender.

4.3.3. As circumstances warrant, meet to follow up on juvenile misconduct cases discussed previously. The JAC may require the juvenile offender and sponsor to return to a future JAC meeting to determine whether the action taken was correct and sufficient. The JAC may recommend to 72 ABW/CC that the action taken in a particular case be modified based upon a subsequent JAC meeting.

4.4. 72 ABW/CC will:

4.4.1. Review the minutes of the JAC meetings. Consider the recommendations of the JAC. The 72 ABW/CC shall take the action deemed appropriate for the preservation of good order and discipline at Tinker AFB while balancing the best interests of the rehabilitation of the juvenile. If the 72 ABW/CC accepts the recommendations of the JAC Chair, the 72 ABW/CC will sign the Decision Memorandum (see **Attachment 5**). If 72 ABW/CC rejects the JAC's recommendations, the JAC Chair may direct that the JAC meet to discuss the case again.

4.5. If the juvenile and sponsor accept the JAC hearing forum, the juvenile and his or her sponsor will:

4.5.1. Appear before the JAC as directed in the notification memorandum.

4.5.2. Provide the JAC information relevant to the case.

4.5.3. Comply with all orders of the JAC and the decision memorandum issued by the 72 ABW/CC. Participation in community service and counseling programs by the juvenile and/or the sponsor is voluntary, although rescission of administrative sanctions (e.g., reinstatement of privileges) may be contingent upon the satisfactory completion of such programs.

5. Conducting JAC meetings.

5.1. The JAC Chair shall conduct JAC meetings, with input as desired from the various members.

5.2. General guidance.

5.2.1. The JAC may arrange for the appearance of any witness deemed necessary for the resolution of a case. Formal rules of evidence do not apply. The JAC may rely on relevant hearsay evidence (to include Security Forces reports), so long as the hearsay statement is deemed to be reliable.

5.2.2. JAC meetings shall be closed to the public, as the information discussed is protected from public disclosure by the Privacy Act.

5.2.3. The JAC meetings are not judicial proceedings. Neither the juvenile nor his or her sponsor has the right to legal counsel during the meeting. They may call their own witnesses and may ask questions to witnesses called by the JAC. However, nothing in this instruction shall be construed to grant any rights to the juvenile or his or her sponsor.

5.3. Suggested procedure:

5.3.1. Prior to calling any juveniles, JAC members convene and discuss preliminary matters, such as order in which JAC cases shall be heard or any old cases which require follow-up.

5.3.2. When each case is called, the Chair shall explain the purpose and procedures of the JAC to each juvenile and/or the juvenile's parents/sponsor.

5.3.3. If the juvenile chooses to participate in the JAC, the Chair shall inquire of the juvenile as to the factual basis for the case and allow the juvenile an opportunity to voice his or her version of the alleged misconduct. This factual inquiry should be thorough enough to prove by a preponderance of the evidence (i.e., it is more likely than not) that the juvenile did in fact commit the misconduct.

5.3.4. After a factual inquiry has been developed to support a finding of guilt as to the allegation, the JAC shall make additional inquiries to determine if circumstances exist which might warrant leniency or harsher action against the juvenile.

5.3.5. Upon the conclusion of this inquiry, the juvenile and his or her parents/sponsor will be asked to wait outside while the JAC members discuss the recommendation for an appropriate command response to the misconduct. The juvenile and parent/sponsor shall

then be called back before the JAC to hear the recommended course of action. The Chair may also give any verbal counseling/admonishment/reprimand at this time.

5.3.6. Once the juvenile's case has been concluded, the Recorder (72 ABW/JA) shall provide a recorded copy of the list of punishments (see **Attachment 7**) that were given to the juvenile by the JAC Chair during the JAC meeting. Both the juvenile and his or her sponsor shall sign the bottom of the document to show that they understand and agree to comply with the punishments. The original document shall be kept by the 72 ABW/JA office and a copy shall be provided to the juvenile and sponsor to allow the juvenile to proceed with said punishments. This document is to be completed and signed before the juvenile and sponsor leave the 72 ABW/JA office on the day they appeared before the JAC.

6. Records Management.

6.1. A member of the Office of the Staff Judge Advocate, shall act as recorder for the JAC. 72 ABW/JA shall maintain the confidentiality of all records subject to the Privacy Act of 1974 and dispose of such records in accordance with AFMAN 33-363, *Management of Records*, and AFI 33-364, *Records Disposition–Procedures and Responsibilities*. In accordance with the Air Force Records Disposition Schedule (RDS) located at **https://www.my.af.mil/afrims/afrims/afrims/rims.cfm** units are responsible for the maintenance and disposal of electronic or paper records created.

6.2. No incident system of records will be generated or kept by JAC members. All correspondence to the juvenile or his or her sponsor will be hand delivered or mailed via United States Postal Service certified mail with return receipt.

KENYON K. BELL, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

18 U.S.C. Chapter 403, Juvenile Delinquency, 2 August 2018

18 U.S.C., Section 5032, *Delinquency proceedings in district courts; transfer for criminal prosecution*, 2 August 2018

AFPD 51-9, *Civil Law for Individuals*, 30 July 2015

AFI 31-101, *Integrated Defense (FOUO)*, 5 July 2017

AFMAN31-116, *Air Force Motor Vehicle Traffic Supervision*, 18 December 2015

AFI 33-364, *Records Disposition–Procedures and Responsibilities*, 22 December 2006

AFI 34-211(I), *Army and Air Force Exchange Service Operations*, 11 July 2017

AFMAN 33-363, *Management of Records,* 1 March 2008

DoDI 1330.17, *DoD Commissary Program, 18 June 2014*

DoDI 5200.08, *Security of DoD Installations and Resources and the DoD Physical Security Review Board (PSRB)*, 10 December 2005

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

AF Form 3545, *Incident Report*

Abbreviations and Acronyms

72 ABW SJA—A72d Air Base Wing Staff Judge Advocate

72 SFS —72d Security Forces

AFB —Air Force Base

AFI—Air Force Instruction

AFMAN —Air Force Manual

ASJA —Assistant Staff Judge Advocate

CCF—First Sergeant

OPR—Office of Primary Responsibility

RDS —Records Disposition Schedule

ROI —Report of Investigation

SAUSA —Special Assistant United States Attorney

U.S. —United States

USC—United States Code

Terms

Jurisdiction—The JAC shall have jurisdiction over juvenile misconduct that occurs at Tinker AFB.

Juvenile—An unemancipated minor. A person is unemancipated if he or she has not attained his or her eighteenth birthday, is unmarried, is not in military active duty status, is not living separate and apart from his or her parents or guardian and has not been deemed emancipated by a court of competent jurisdiction. A minor is any person under the age of 18 years.

Juvenile Assistance Council (JAC)—The committee charged with reviewing cases of juvenile misconduct.

Juvenile Offender—A juvenile who has been determined by the JAC, in accordance with procedures set forth in this instruction, to have engaged in misconduct at Tinker AFB.

Misconduct—Violation of a federal, state or local statute; a breach of Air Force or installation instructions or regulations or conduct disruptive to good order and discipline. Examples include, but are not limited to, any of the following:

Pattern of disobedience of the lawful rules set forth by security forces or recreation supervisors, etc., disrespect to military or civil servant personnel or physical assault or battery upon any of these persons.

Vandalism or destructive behavior causing up to $500 in damages.

Shoplifting from a commissary, Base Exchange, or other AAFES institution.

Underage drinking.

Preponderance of the Evidence—The standard of proof necessary to find that the juvenile committed the misconduct in question. This standard is met when the evidence as a whole shows that it is more likely than not that alleged misconduct actually occurred.

Sponsor—An adult who is the parent or guardian of a juvenile alleged to have committed misconduct at Tinker AFB. A sponsor includes the host of a guest from off-base parents and/or guardians, who have responsibility for the conduct of juveniles in his or her charge.

Attachment 2

ID CARD CONFISCATION FOR SHOPLIFTING, NOTIFICATION MEMORANDUM (SAMPLE)

Figure A2.1. ID Card Confiscation For Shoplifting, Notification Memorandum (Sample).

MEMORANDUM FOR All Tinker Air Force Base Exchange and Commissary Patrons

FROM: 72 MSG/CD
7460 Arnold Street, Suite
227 Tinker AFB OK 73145-
9005

SUBJECT: ID Card Confiscation for Shoplifting

1. This memo defines Tinker Air Force Base procedures for confiscating military identification (ID) cards following incidents of shoplifting at the Tinker Exchange and Commissary pursuant to the authority governed in AFI 36-3026. This memo applies to all uniform services ID card holdings including active duty, guard, reserve, retired and family members, as defined by AFI 36-3026.

2. If there is probable cause that an active duty, guard, or reserve member shoplifted, the ID card of the alleged shoplifter will not be confiscated. The responding Security Forces member will take all information necessary for reporting the incident and provide that information to the member's unit commander. In addition, Exchange, Commissary, and Morale Welfare and Recreation (MWR) privileges will be suspended for a period of one year.

3. If there is probable cause that a retired military member or a family member of a retiree, active duty, guard or reserve member shoplifted, the ID card of the alleged shoplifter will be seized by Security Forces and that person's Exchange, Commissary, and Morale, Welfare and Recreation (MWR) privileges will be suspended for a period of one year. In aggravated cases, the privileges may be suspended for a longer period of time or revoked indefinitely. Such an extension will be determined by the 72 MSG/CC or 72 MSG/CD and written notification will be made to the ID card holder. The suspected offender will be given an AF Form 52, which will be valid for 72 hours or until the next duty day. In order to receive a new ID card and revised DD Form 1172 with appropriate benefits and privileges, the offender must appear in person, along with their sponsor, at the Military Personnel Section's ID Card Office, Building 1, Doors 3 and 4.

4. The alleged offender will be provided notice of the charges and will have the opportunity to offer evidence contesting the charges. If offender is active duty, guard or reserve, this will be done through the offender's unit commander. If the offender is a juvenile, the offender may contest the charges through the Juvenile Assistance Council (JAC). Lastly, if the offender is a civilian adult, he/she may contest the charges through U.S. Magistrate Court.

5. The alleged offender may request a shortened or waived suspension of his or her privileges by submitting a written request for an administrative hearing to the undersigned no later than 10 days after initial apprehension. Guidance on how to request a hearing is provided in Attachment 3.

6. If, after adjudication of the shoplifting offense in U.S. Magistrate Court, the alleged offender can provide documentation of a "not guilty" verdict, the alleged offender may submit a request to the undersigned for early reinstatement of Exchange, Commissary, and MWR privileges.

7. Any additional questions can be directed to 72 SFS/S5R, (405) 739-5934.

(Name of JAC Chair), (Rank), USAF
Deputy Commander

Attachment 3

LOSS OF ID CARD, NOTIFICATION MEMORANDUM (SAMPLE)

Figure A3.1. Loss of ID Card, Notification Memorandum (Sample).

MEMORANDUM FOR OFFENDER'S NAME: _____
SPONSOR'S NAME: _____
SPONSOR'S STATUS: _____

FROM: 72 MSG/CD
7460 Arnold Street Suite 227
Tinker AFB OK 73145-9007

SUBJECT: Limited Privileges and ID Card Reissue

1. On **(Date)**, your ID card was confiscated for suspected shoplifting. For this offense, your AAFES, Commissary and Morale, Welfare and Recreation (MWR) privileges are suspended for a period of one year, unless otherwise notified.

2. The AF Form 52 in your possession is good for 72 hours or until the next duty day. To receive a new ID card with limited privileges, you must appear in person, with your sponsor, at the Military Personnel Flight Customer Service Office, Building 1, Doors 3 and 4, and receive a revised DD Form 1172 with appropriate benefits and privileges. Medical privileges will not change. The Military Personnel Flight will identify and mark the appropriate blocks of your ID card limiting your privileges.

3. You may request a review of your suspension or an administrative hearing to request a waiver of suspended privileges or a reduced suspension. You will need to present any evidence or information that mitigates the suspension before requesting a hearing. If you are a family member of an active duty, guard, reserve or retired military member, you must report to the hearing with your sponsor. Your request for a review or hearing should be received by 72 MSG/CD, at the address above. If a hearing is granted, you will be notified of the date, time, and location of the hearing. If you have any questions, please contact me at (405) 739-2856.

(Name of JAC Chair), (Rank),
USAF
Deputy Commander

For SFS use only:
MPF Customer Service fax 739-4623, phone
739-7646 Date/Time Faxed: _____ Sender: ____ Date/Time Fax Confirmed: __

Attachment 4

ORDER TO APPEAR BEFORE JAC (SAMPLE)

Figure A4.1. Order to Appear Before JAC (Sample).

MEMORANDUM FOR (Juvenile's name)

FROM: 72 MSG/CD
7460 Arnold Street, Suite 227
Tinker AFB OK 73145-9005

SUBJECT: Order to Appear Before the Juvenile Assistance Council (JAC)

1. On (date) , you were allegedly involved in juvenile misconduct while on Tinker Air Force Base. Misconduct is defined as any violation of federal, state or local statute, Air Force regulation, ordinance or other activity prejudicial to good order and discipline. In accordance with Tinker Instruction 51-100, *Juvenile Assistance Council*, you and your parent(s)/sponsor are ordered to appear before the JAC on (date) at (time) .

2. The JAC meets in the Office of the Staff Judge Advocate, in Building 460, located on the south side of the building. At the meeting, you and your parents/sponsor will have the opportunity to explain why your base privileges (Base Exchange privileges, Commissary privileges, base housing privileges, Morale, Welfare and Recreation (MWR) Privileges and/or the privilege of entering the base) should not be limited or revoked. If you fail to appear at the designated time, you may be subject to debarment from the base pursuant to Air Force Instruction (AFI) 31-209. The JAC is an administrative quasi-judicial proceeding. You are expected to dress and behave as though you were appearing before a judge.

3. You and your parent(s)/sponsor may present any relevant evidence for consideration by way of witness testimony or exhibits. You may testify or decline to testify at your discretion. If you intend to present witnesses or exhibits, you must present a list of each witness or exhibit to the JAC upon request.

4. The Office of the Staff Judge Advocate will provide you a copy of Tinker Instruction 51-100 upon request. Security Forces can also provide copies of any relevant statement(s) and incident/complaint reports. A copy of this letter will be served to your parent(s)/sponsor. Another copy will be presented to your sponsor's commander.

5. You and your parent(s)/sponsor may use this letter to gain access to Tinker Air Force Base for the purpose of attending the meeting.

(72 MSG/CD), (Rank), USAF
Deputy Commander

1st Indorsement to Order to Appear Before JAC

I acknowledge receipt and understand this possible suspension of my on-base privileges. I also understand that entering the above places on Tinker Air Force Base or any other military installation before appearing at the hearing may cause further adverse consequences.

_____ _____ _____

(Print) Last Name, First, MI Signature Date

_____

Sponsor/Responsible Party Signature

( ) Individual refused to acknowledge receipt and understanding of suspension of on-base privileges.

_____

Patrolman Signature

cc:
Parent(s)/Sponsor
Sponsor's Commander

Attachment 5
DECISION MEMORANDUM (SAMPLE)
Figure A5.1. Decision Memorandum (Sample).

FROM: 72 ABW/CC
7460 Arnold Street, Suite 234
Tinker AFB OK 73145-9005

Sponsor's Name, (Active Duty/Retired Info) Sponsor's Address
Sponsor's Address

Dear (Sponsor's Name/Rank)

On (date), your (son/daughter), (juvenile's full name), shoplifted (name of items) valued at over (dollar amount) from the (Tinker Army and Air Force Exchange Service (AAFES) main store) or (shoppette). As a result, you and your (son/daughter) met with the Juvenile Assistance Council (JAC) on (date) to discuss appropriate rehabilitative and compensatory actions. I have accepted the recommendations of the JAC and direct the following:

1. (Juvenile's first name) AAFES, to include the Base Exchange and Shoppettes, and Commissary privileges are suspended for a period of 1 year. If there are no additional infractions and if otherwise eligible, (Juvenile's first name) privileges may be reinstated on (date – one year from date of incident).

2. (Juvenile's first name) is to perform (number of hours) hours of community service. The community service must be completed in accordance with the guidance provided by (JAC Chair's name) during the JAC meeting.

3. (Juvenile's first name) will (compose a five-page essay) or (letter of apology to). The (essay or letter) must be completed in accordance with the guidance provided by (JAC Chair's name) during the JAC meeting.

You should send documentation of (juvenile's first name) completed actions to (JAC Chair's name, 72 MSG/CD, at 7460 Arnold St., Suite 227, Tinker AFB, OK, 73145), or you may E-mail him/her at (JAC Chair's base email address). Your participation in the JAC is completely voluntary. If you do not wish to comply with the requirements stated above or do not complete them within the prescribed time limits, I will consider further action including referral of (juvenile's first name) crime to the Special Assistant United States Attorney for prosecution in U.S. Magistrate Court.

Shoplifting is a serious crime and I will not tolerate such misconduct on the installation. I sincerely hope (juvenile's first name) understands the impact of his/her actions and as a result will make better choices in the future. I wish you and your family the very best as you move past this unfortunate incident.

Regards

(72 ABW/CC's name), Colonel, USAF
Commander

cc:
72 SFS/S5R
72 FSS/FSF

Attachment 6

REVOCATION MEMORANDUM (SAMPLE)

Figure A6.1. Revocation Memorandum (Sample)

MEMORANDUM FOR OFFENDER'S NAME: _____
SPONSOR'S NAME: _____
SPONSOR'S STATUS: _____

FROM: 72 ABW/CC
7460 Arnold Street, Suite 234
Tinker AFB OK 73145-9005

SUBJECT: Revocation of Base Exchange Privileges

1. On (date), your (son/daughter), (juvenile's full name), was reported to the 72 Security Forces Squadron by the Base Exchange (BX) Security Office for shoplifting merchandise valued at over (dollar amount).

2. As a result of this violation and according to AFI 31-209, your (son/daughter's) AAFES, Commissary, and Morale, Welfare and Recreation (MWR) privileges are hereby revoked for a period of 1 year, commencing on the date the Identification Card, DD Form 1173 was surrendered. If (juvenile's first name) has not surrendered his or her identification card, then you and your (son/daughter) are hereby directed to report to the Military Personnel Flight Customer Service Center located in Building 1, Doors 3 and 4, within four (4) days from the date this letter is received. At that time, you may apply for a replacement card with limited privileges.

(72 ABW/CC's Name), Colonel,
USAF Commander

cc: 72 FSS/FSMPS

Attachment 7

LIST OF PUNISHMENT/S FOR JUVENILE (SAMPLE)

Figure A7.1. List of Punishment/s for Juvenile (Sample).

JUVENILE NAME: _____

☐ REVOKED AAFES, COMMISSARY, AND MORALE, WELFARE, AND RECREATION (MWR) PRIVILEGES FOR: ONE YEAR FROM THE DATE OF THE INCIDENT WHICH WAS _____.

☐ (SCHEDULED) _____ HOURS OF COMMUNITY SERVICE TO BE SERVED:

☐ WRITE ____ LETTER/S: _____
_____
_____
_____
_____

– AND –

WRITE ____ ESSAY: _____
_____
_____
_____
_____

☐ CD-ROM YES PROGRAM TO BE COMPLETED BY _____. IF YOU HAVE ANY FURTHER QUESTIONS REGARDING THIS PROGRAM YOU CAN CONTACT MS. MINDY WHITTINGTON, 734-7866.

We, the juvenile and sponsor, are both in agreement with the punishment that has been set-forth by the Juvenile Assistance Council on this _____ day of _____, 20__. We both understand that the punishment is to be completed by the suspense dates listed above. We also agree that if any punishment is not completed that the alternative will be to appear in U.S. Magistrate Court.

_____ _____
Sponsor Signature **Juvenile Signature**

_____ _____
Sponsor Printed Name **Juvenile Printed Name**